

CITY ORDINANCE NO. CO-143-2023

AN ORDINANCE OF THE LAFAYETTE CITY COUNCIL AMENDING THE LAFAYETTE DEVELOPMENT CODE AND THE OFFICIAL MAP OF THE CITY OF LAFAYETTE, PROVIDING FOR THE ANNEXATION OF ADDITIONAL LAND INTO THE CORPORATE LIMITS OF THE CITY OF LAFAYETTE, LOUISIANA, CASE NO. 2023-21-REZ 400 BLOCK RIDGE ROAD (PARCEL A) ANNEXATION, LOCATED GENERALLY NORTH OF TOWN CENTER PARKWAY, EAST OF RUE DU BELIER, AND SOUTH OF RIDGE ROAD; AND ASSIGNING A ZONING CLASSIFICATION OF MN-2 (MIXED-USE NEIGHBORHOOD) (DISTRICT 2)

BE IT ORDAINED by the Lafayette City Council, that:

SECTION 1: The Lafayette Development Code and official map of the City of Lafayette are hereby amended so as to annex Case No. 2023-21-REZ 400 Block Ridge Road (Parcel A) Annexation, located generally north of Town Center Parkway, east of Rue du Belier, and south of Ridge Road; and assigning a zoning classification of MN-2 (Mixed-Use Neighborhood). Refer to survey "Map of Proposed Extension for City of Lafayette, Corporate Limits, Located in Section 17, T10S-R4E," prepared by: Lafayette City-Parish Consolidated Government, Lafayette Utilities System; a copy is attached hereto and made a part thereof.

SECTION 2: The foregoing described property is located within Lafayette City Council District No. 2.

SECTION 3: The description of the property to be annexed is as follows:

Beginning at a point on the existing City of Lafayette corporate limits, said point is the northerly property corner of QUINT M PARTNERSHIP LLC and the southerly right-of-way of Ridge Rd,

thence S89°18'14"E, a distance of approximately 184.68', along the northerly property line of QUINT M PARTNERSHIP LLC and the southerly right-of-way of Ridge Rd to a corner point,

thence S01°43'55"W, a distance of approximately 168.95', along the easterly property line of QUINT M PARTNERSHIP LLC and the westerly property line of QUINT M PARTNERSHIP LLC (353) to a corner point,

thence N88°32'34"W, a distance of approximately 228.14', along the southerly property line of QUINT M PARTNERSHIP LLC and the northerly property line of QUINT M PARTNERSHIP LLC (353) to a corner point,

thence N01°43'55"E, a distance of approximately 143.11', along the westerly property line of QUINT M PARTNERSHIP LLC and the easterly property line of QUINT M PARTNERSHIP LLC (353) to a corner point,

thence N63°15'19"E, a distance of approximately 49.49', along the northwesterly property line of QUINT M PARTNERSHIP LLC and the southeasterly property line of QUINT M PARTNERSHIP LLC (353) to a corner point,

which is also the existing City of Lafayette corporate limits and the point of beginning, all as shown on the attached incorporation map prepared by Lafayette City-Parish Consolidated Government - Lafayette Utilities System, dated May 02, 2023 entitled, **MAP OF PROPOSED EXTENSION FOR CITY OF LAFAYETTE, LOUISIANA, CORPORATE LIMITS, LOCATED IN SECTION 17, T10S-R4E, 400 BLK RIDGE RD ANNEXATION** – APPROX. 0.86 ACRE.

SECTION 4: All ordinances or resolutions, or parts thereof, in conflict herewith are hereby repealed.

SECTION 5: This ordinance shall become effective upon the elapse of 30 days after publication or posting, pursuant to Louisiana Revised Statute 33:173, *et seq.*

* * * * *

**LAFAYETTE ZONING COMMISSION
RECOMMENDATION OF ACTION**

TO: Lafayette City Council

FROM: Lafayette Zoning Commission and Community Development & Planning Dept.

SUBJ: 2023-21-REZ 400 Block Ridge Road (Parcel A) Annexation

PETITIONER: Robert/Jordan Daigle

DATE PETITION FILED: April 14, 2023

DATE OF PUBLIC HEARING: August 21, 2023

DATES OF PUBLICATIONS: August 6, 2023
August 16, 2023
August 20, 2023

DATE OF ZONING COMMISSION RECOMMENDATION: August 21, 2023

RECOMMENDATION: Approve the ordinance that would assign the zoning classification MN-2 (Mixed-Use Neighborhood) for property proposed for annexation into the city of Lafayette.

Motion: Green
Second: Pritchard
Vote: 5-0-0-0
Ayes: Hebert, Trahan, Dural, Green, Pritchard
Nays: None
Absent: None
Abstain: None

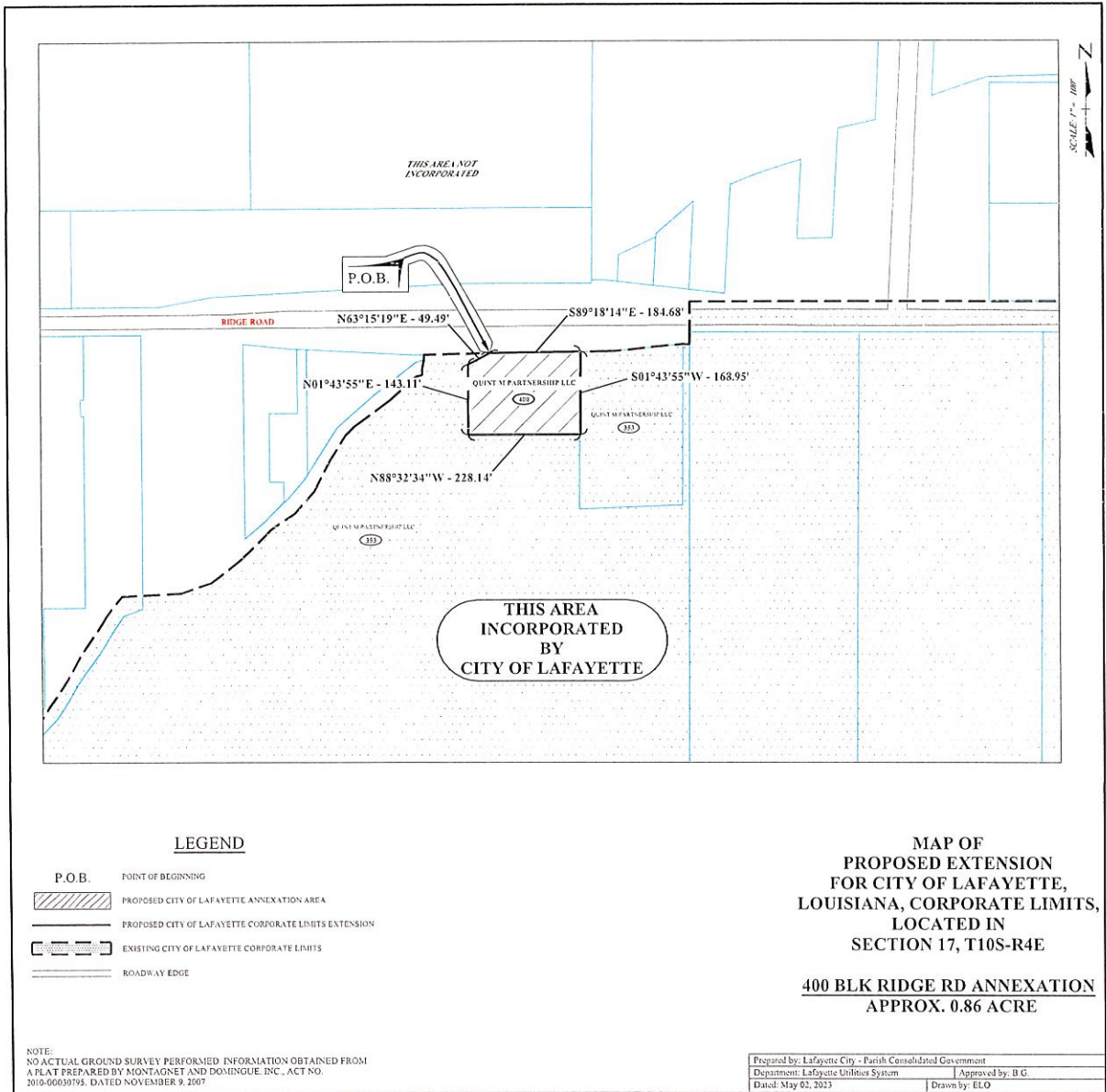
ATTACHMENTS: Executive Summary and Preliminary Staff Report

REASONS FOR RECOMMENDATION: Executive Summary including Zoning Commission Recommendation

Sincerely,



Mary Sliman, Director
Community Development and Planning Dept.



Zoning Commission

Community Development and Planning Department Staff Report

EXECUTIVE SUMMARY

Drafted 7/6/2022
Amended 8/18/2023

2023-21-REZ

City Council District: 2 – Andy Naquin

Parish Council District: 2 – Kevin Naquin

Applicant: Creekview Development, LLC c/o Robert/Tucker Daigle

Request: This is a request for a zoning assignment of MN-2 (Mixed-Use Neighborhood) for property proposed for annexation into the city of Lafayette, to build a residential development with more density and options for integrated neighborhood retail and services.

This case is the next phase of two previous cases: **ZON2022-0043 200-300 Block Target Loop**, Creekview, a Mixed-Use Neighborhood Development and **2023-13-REZ 400 Block Ridge Road Rezoning**.

Location: 400 Block Ridge Road, Parcel A

Summary of Proposal:

The purpose of the proposed zoning assignment of MN-2 (Mixed-Use Neighborhood) for property to be annexed into the city of Lafayette is to allow for the construction of a residential development with more density and options for neighborhood retail and services. The first phase of this development was rezoned in November of 2022, from CH (Commercial-Heavy) to MN-2 (Mixed-Use Neighborhood). The second phase was in June of 2023, where again CH (Commercial-Heavy) zoning districts were recommended to be rezoned to MN-2 (Mixed-Use Neighborhood).

Recommendation:

Staff recommends a zoning assignment of MN-2 (Mixed-Use Neighborhood).

Reason for Recommendation:

The subject property is part of a residential development, "Creekview, a Mixed-Use Neighborhood Development". This current portion is a small (.86 acres) property at the Ridge Road side of the development. Other properties were rezoned in November of 2022 that included properties divided into lots for townhouses, commercial areas, and future development.

The subject property is an unincorporated part of an extensive area of CH (Commercial-Heavy) zoning districts, some following Johnston Street, and some extending to the west as far as West Broussard Road. However, parts of this area have already been rezoned for residential properties instead of commercial heavy properties in several cases, where large tracts were rezoned to RM-1 (Residential Mixed) and MN-2 (Mixed-Use Neighborhood). MN-2 (Mixed-Use Neighborhood) will allow the developer to use different housing types and utilize light commercial for neighborhood-type retail and services.

Summary of Public Comment:

At the time of publication of the preliminary report, staff has received no phone calls.

ZONING COMMISSION RECOMMENDATION

The Zoning Commission held a public hearing regarding this matter at its August 21, 2023, meeting and approved a motion to recommend that the City Council approve the request to assign a zoning of MN-2 (Mixed-Use Neighborhood).

Summary of Public Comment:

Public Comment before the Zoning Commission meeting

Support: 0

Opposition: 0

Neutral: 0

Public Comment during the Zoning Commission meeting

Support: 1

Opposition: 0

Neutral: 0

Zoning Commission Meeting

August 21, 2023

2023-21-REZ

To: City Zoning Commission

From: Mary Sliman, Director
Cathie Gilbert, Planning Manager

City Council District: 2 – Andy Naquin

Parish Council District: 2 – Kevin Naquin

Prepared by: Carol Vermillion Robbins

PRELIMINARY STAFF REPORT

I. GENERAL INFORMATION

Applicant: Creekview Development, LLC c/o Robert/Tucker Daigle

Request: This is a request for a zoning assignment of MN-2 (Mixed-Use Neighborhood), to allow for the construction of a residential development, Creekview, a Mixed-Use Development.

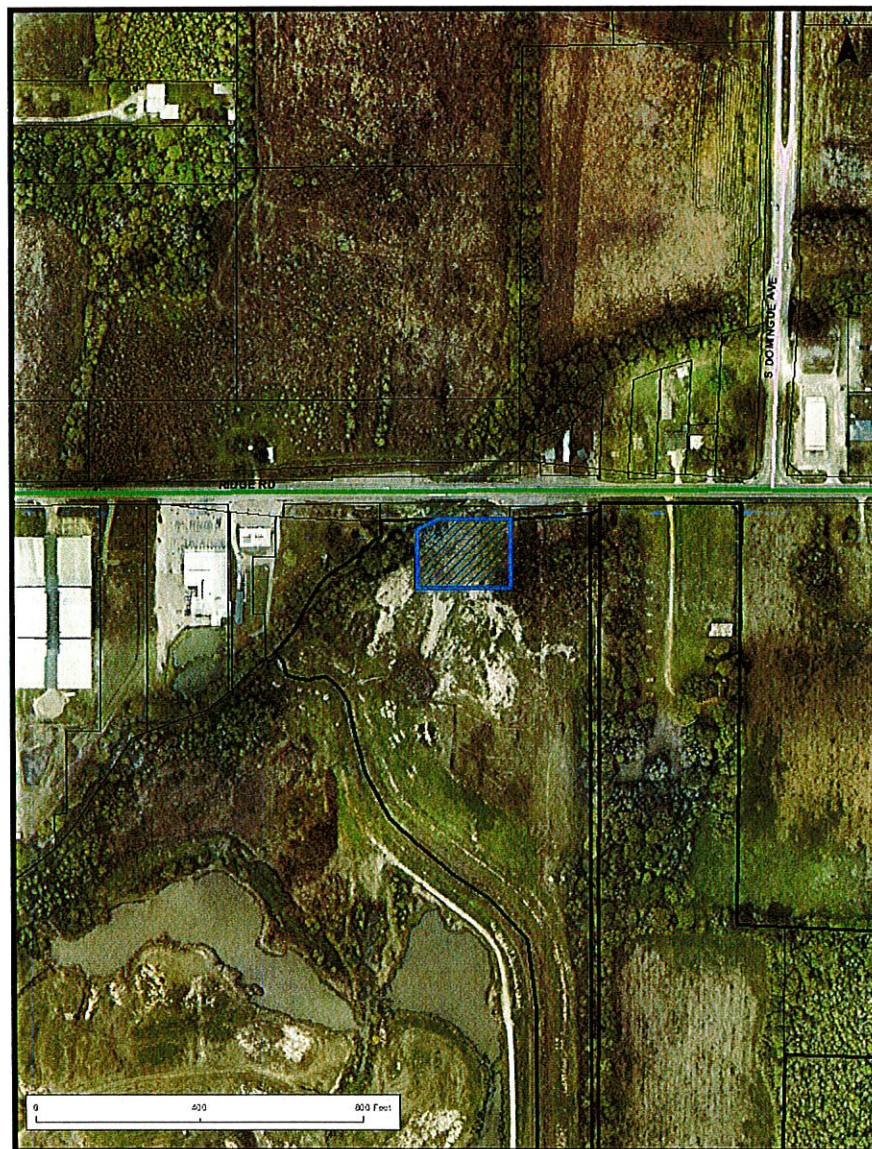
Location: 400 Block Ridge Road Parcel A

Description: The property is located generally north of Town Center Parkway, east of Rue du Belier, and south of Ridge Road, and is 0.86 acres.

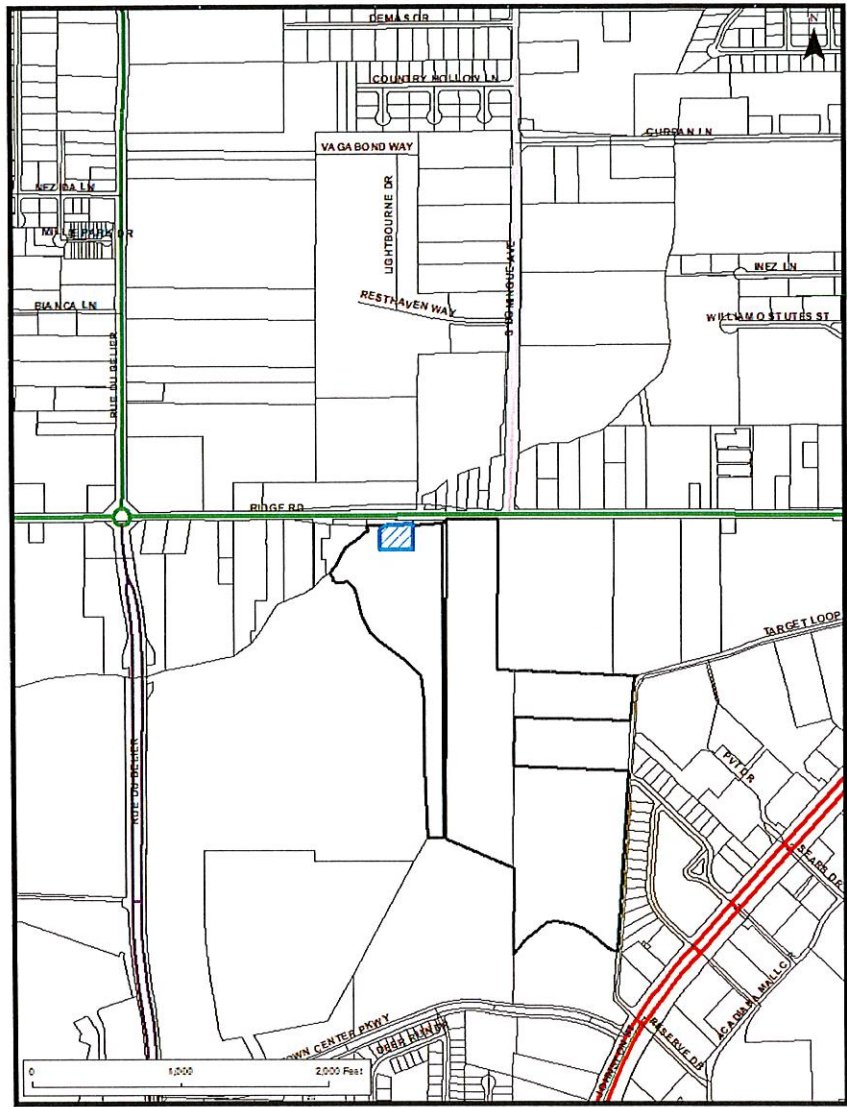
Why is Zoning Commission action required?

The Zoning Commission is required to make a recommendation on all applications for amendments to the zoning map to the City Council before council action, by Article 4 of the Lafayette Development Code.

The LDC establishes procedures for making land development decisions. To obtain a certificate of occupancy, building permit or to subdivide the property, the zoning district must permit the proposed land use and development standards. The city of Lafayette is divided into zoning districts that can be generally categorized by agricultural, residential, mixed-use, commercial, and industrial land uses. Each zoning district has a set of permitted and/or conditional uses.



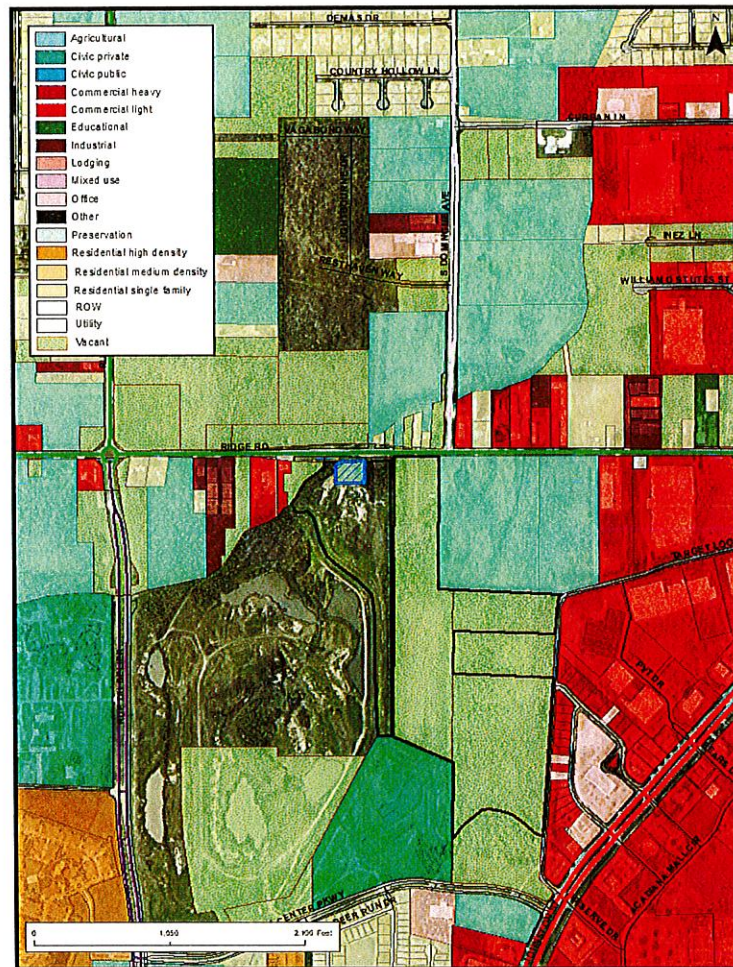
Subject Property



Vicinity Map

The subject property is located at the northern edge of two proposed residential developments. Creekview Development is to the east, and the subject property will be part of this development, also with the same recommended zoning classification, MN-2 (Mixed-Use Neighborhood). Another residential development zoned RM-1 (Residential Mixed), is to the west. The subject property is currently unincorporated. There are several large areas of unincorporated properties, along with CH (Commercial-Heavy) zoning districts to the northeast, following Johnston Street, and all around the two proposed residential developments and the subject property. To the northwest is an RS-1

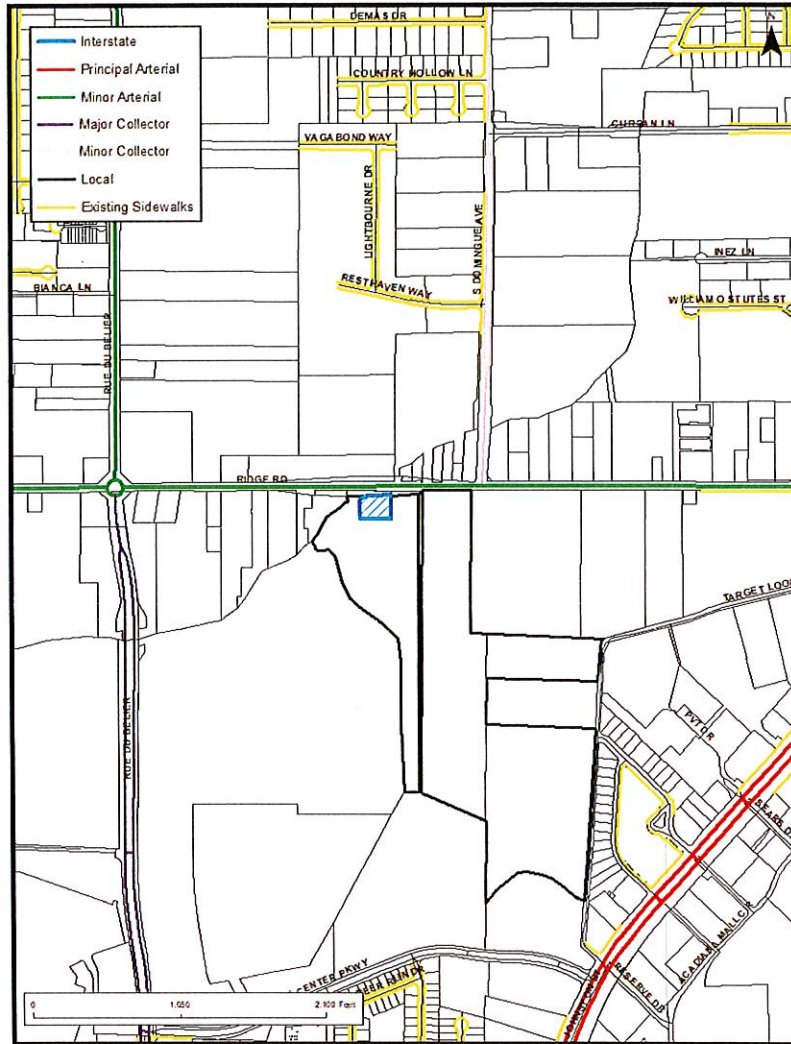
(Residential Single-Family) zoning district for another residential development, along with an A (Agricultural) area that will be used for a new school. CM-1 (Commercial Mixed) properties follow Rue du Belier to the north.



Land Use Map

The Land Use map indicates that the subject property and properties near it are undeveloped proposed residential developments, agricultural uses, and a few residential uses. There are several civic private uses, including church property, the Alleman Center and Acadian Village. Most commercial uses in this area are small and far between, mainly along Ridge Road, until you reach the areas around Johnstone Street.

infrastructure



Street Classification and Sidewalk Inventory

The subject property is accessed from Ridge Road, which is a minor arterial. Nearby Johnston Street is a divided principal arterial. Rue du Belier is a minor arterial until the intersection with Ridge Road, where it becomes a divided highway and a major collector. South Domingue Avenue, a minor collector, intersects Ridge Road near the proposed entrance to the property. All of these roadways in the vicinity will assist residents of the new development with travel choices in their every day and commuter lives. There are existing sidewalk systems along parts of Ridge Road and Johnston Street, and in some of the residential developments.

B. Recent cases and relevant trends

There was a case in the fall of 2022 that is connected to the current project. **ZON2022-0043 200-300 Block Target Loop** rezoned the property to the southeast of the subject property from CH to MN-2 (Mixed-Use Neighborhood) in order to build a residential development (Creekview) with light commercial amenities. Another case was presented to the Zoning Commission in June of 2023, **2023-13-REZ 400 Block Ridge Road Rezoning**, where additional properties were recommended to be rezoned from CH (Commercial-Heavy) to MN-2 (Mixed-Use Neighborhood) for Creekview Development. **ZON2022-0002 400 Block Town Center Parkway Rezoning** to the south of the subject property was rezoned in 2022 from CH (Commercial-Heavy) to RM-1 (Residential Mixed) in order to build a single-family residential development, with plans for more diverse housing to come in the future. The majority of recent rezonings, annexations and development in this area have been residential.

C. Purpose of rezoning and effect on adjacent land uses

The purpose of the rezoning is to allow for residential development in an undeveloped area that has been primarily zoned CH (Commercial-Heavy) with some unincorporated properties. The adjacent land uses include a recently-rezoned planned RM-1 (Residential Mixed) residential development just to the west of the subject property, the other portions of Creekview Development to the east, and several civic private uses (Acadian Village, Alleman Center, and church property) that are compatible with residential land use. Other adjacent land uses include small commercial properties, single-family residences, and undeveloped properties. New residential development would be compatible with these.

D. Evaluation of approval standards

The proposed use is consistent with the comprehensive plan.

N/A.

There was a mistake in the original zoning map or text.

N/A.

The proposed amendment is compatible with current development trends, if any, in the vicinity of the subject property.

The proposed amendment would be compatible with current development trends in the area as some of the most recent uses include a PD (Planned Development) just south of the subject property on Duhon Road and the proposed residential developments to the south of the subject property. These residential developments, and the current case, are all within a short distance of a principal arterial, Johnston Street, which gives easy access to work or play. This area has become desirable for residential living, as this easy access is combined with site planning to ensure a more residential feel to these developments.

The proposed amendment promotes the public health, safety, morals, and general welfare.

N/A.

The proposed amendment is compatible with surrounding land uses.

Yes. The many uses in the area of the subject property are mainly residential with smaller commercial businesses nearby. There are much larger commercial properties the closer one gets to Johnston Street. There are also civic and commercial uses that are supportive of residential properties such as this one.



Internal Memorandum

Community Development and Planning Department
Office of the Director (Route 9041)

TO: Cydra Wingerter

DATE: August 18, 2023

FROM: Mary Sliman

SUBJECT: Case No. 2023-21-REZ
400 Block Ridge Road Annexation

The attached ordinance would assign a zoning classification of MN-2 (Mixed-Use Neighborhood) to property proposed for annexation located generally north of Town Center Parkway, east of Rue du Belier, and south of Ridge Road.

The Zoning Commission, at its Monday, August 21, 2023 meeting, recommended that the City Council approve the attached ordinance. We request that Council Introduction be scheduled for Tuesday, September 5, 2023, with Final Adoption Tuesday, September 19, 2023.

Please call if you have any questions or require additional information in this matter.

A handwritten signature in blue ink, appearing to read "Mary Sliman", is written over a horizontal line.

Mary Sliman
Director

RECEIVED

AUG 18 2023

Lafayette Consolidated Government
Chief Administrative Officer

LAFAYETTE CITY COUNCIL MEETING
ZONING AGENDA ITEM SUBMITTAL FORM

- 1) **JUSTIFICATION FOR REQUEST:** This is a request for the adoption of an ordinance that would annex property located generally north of Town Center Parkway, east of Rue du Belier, and south of Ridge Road.
- 2) **ACTION REQUESTED:** Adoption of the attached ordinance to assign the zoning classification of MN-2 (Mixed-Use Neighborhood) to the property proposed for annexation.
- 3) **REQUEST ACTION OF COUNCIL:**
 - A. INTRODUCTION: September 5, 2023
 - B. FINAL ADOPTION: September 19, 2023
- 4) **DOCUMENTATION INCLUDED WITH THIS REQUEST:**
 - A. Cover Memo from Director (1 page)
 - B. Submittal Form (1 page)
 - C. Zoning Commission Recommendation of Action (1 page)
 - D. Ordinance (2 pages)
 - E. Map (1 page)
 - F. Final Evaluation of Zoning Considerations (11 pages)
- 5) **FISCAL IMPACT:**
☐ Fiscal Impact (will be detailed in Cost-Revenue Analysis)
☒ No Fiscal Impact

RECOMMENDED BY:



MARY SLIMAN, DIRECTOR

APPROVED FOR AGENDA:


CHIEF ADMINISTRATIVE OFFICER